

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #07	CCRB Case #: 201809637	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 11/19/2018 8:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/3/2021	Precinct: 113		
Date/Time CV Reported Mon, 11/19/2018 11:23 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/19/2018 11:23 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Christopher Griffith	2233	950289	WARRSEC
2. DT3 Christopher McGee	2293	931819	WARRSEC
3. DT3 Jared Pilkington	3688	951059	WARRSEC
4. Officers			WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Charmain McClain	31820	922738	113 PCT
2. POF Margarita Barahona	18563	958286	113 PCT
3. SGT Diego Dejesus	4128	943134	113 PCT
4. POM Peter Rohme	14457	957098	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Christopher Griffith	Abuse: Detective Christopher Griffith entered § 87(2)(b) in Queens.	A . Exonerated
B . DT3 Christopher McGee	Abuse: Detective Christopher McGee entered § 87(2)(b) in Queens.	B . Exonerated
C . DT3 Jared Pilkington	Abuse: Detective Jared Pilkington entered § 87(2)(b) in Queens.	C . Exonerated
D . DT3 Christopher Griffith	Abuse: Detective Christopher Griffith threatened to damage § 87(2)(b)'s property.	D . Exonerated
E . Officers	Abuse: Officers damaged § 87(2)(b)'s property.	E . Officer(s) Unidentified
F . DT3 Christopher Griffith	Abuse: Detective Christopher Griffith threatened to arrest § 87(2)(b)	F . Unsubstantiated
G . DT3 Christopher McGee	Abuse: Detective Christopher McGee took photographs or recordings of § 87(2)(b)	G . Unsubstantiated

Case Summary

On November 19, 2018, § 87(2)(b) filed this complaint with the CCRB over the phone. Also on November 19, 2018, § 87(2)(b) filed a complaint about the same incident with the CCRB over the phone. His complaint initially received CCRB complaint number § 87(2)(b) but was then combined with this complaint. § 87(2)(b) did not witness this incident.

At approximately 8:30 a.m. on November 19, 2018, Detective Christopher Griffith, Detective Jared Pilkington, and Detective Christopher McGee of the Queens South Warrant Squad went to § 87(2)(b) in Queens § 87(2)(b) and § 87(2)(b) § 87(2)(b)'s residence). All three detectives walked from the public sidewalk through a fence on to § 87(2)(b)'s stoop (**Allegations A, B, and C: Abuse of Authority: Entry of Premises: Exonerated**). Detective Pilkington walked along the eastern side of the house, while Detective McGee walked along the western side (within **Allegations B and C**).

Detective Griffith knocked on the front door of the house and spoke to § 87(2)(b) through a closed storm door. Detective Griffith said that he had a warrant for someone living at the address, and, as a result, the authority to enter by force (**Allegation D: Abuse of Authority: Threat to Damage Property: Exonerated**). § 87(2)(b) refused to allow officers inside and closed the main front door.

All three detectives allegedly began banging on the front and side doors of the house, damaging them (**Allegations E: Abuse of Authority: Property Damaged: Officer(s) Unidentified**). An officer allegedly scratched § 87(2)(b)'s car (within **Allegation E**).

The officers walked away from the house as § 87(2)(b) and other, unidentified civilians came out on to the second-floor balcony. The civilians spoke to the officers, and Detective Griffith allegedly threatened to arrest § 87(2)(b) (**Allegation F: Abuse of Authority: Threat of Arrest: Unsubstantiated**). Detective McGee allegedly recorded § 87(2)(b) with a cellphone (**Allegation G: Abuse of Authority: Photography/Videography: Unsubstantiated**). The detectives then left the incident location.

Officers did not arrest anyone or issue any summonses during this incident. The investigation obtained no video footage of this incident.

Findings and Recommendations

Allegation A – Abuse of Authority: Detective Christopher Griffith entered § 87(2)(b) in Queens.

Allegation B – Abuse of Authority: Detective Christopher McGee entered § 87(2)(b) in Queens.

Allegation C – Abuse of Authority: Detective Jared Pilkington entered § 87(2)(b) in Queens.

§ 87(2)(b) provided a telephone statement on November 29, 2018 (**Board Review 01**), and a sworn statement to the CCRB on December 5, 2019 (**Board Review 02**). Detective Griffith was interviewed at the CCRB on April 29, 2019 (**Board Review 03**). Detective Pilkington was interviewed at the CCRB on April 29, 2019 (**Board Review 04**). Detective McGee was interviewed at the CCRB on April 29, 2019 (**Board Review 05**).

It was undisputed that on the incident date, Detective Griffith, Detective Pilkington, and Detective McGee went to § 87(2)(b)'s residence. The detectives possessed a valid arrest warrant (docket number § 87(2)(b), issued on § 87(2)(b) **Board Review 09**) for § 87(2)(b) and went to the incident location intending to arrest him for the charges listed therein (see **Allegation D** for further details). The warrant listed the incident address as § 87(2)(b)'s residence.

The incident location is a free-standing, two-story private house that has a driveway running along its entire western side. The house has a small front yard and stoop at its front, facing the public sidewalk. It also has a narrow strip of land running along its entire eastern side. Continuous chain-link fence, brick walls, and wrought-iron fence demarcates the property line along both sides and the front of the residence, with separate gates granting access to the stoop and the driveway.

At the start of the incident, all three detectives walked through a gate and on to the stoop at the front of the house. Detective Griffith walked up the stoop and knocked on the front door, while Detective Pilkington knocked on a door on the east side of the house and Detective McGee approached the west side of the house near the driveway. Over the course of the incident, none of the detectives opened or stepped through any of the house's doorways into the house interior.

Under New York State Criminal Procedure Law Section 120.80.2, when executing an arrest warrant, an arresting police officer must inform a defendant that a warrant for his arrest for the offense designated therein has been issued (**Board Review 18**).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A, B, and C** be **exonerated**.

Allegation D – Abuse of Authority: Detective Christopher Griffith threatened to damage § 87(2)(b) s property.

It is undisputed that on the incident date, Detective Griffith knocked on the front door of the incident address. § 87(2)(b) answered the front door, which consisted of a clear, exterior storm door and an opaque interior door. § 87(2)(b) opened the interior door while leaving the exterior door closed. Detective Griffith said that he had an arrest warrant for a resident of the house and this warrant authorized him to enter the house by force. § 87(2)(b) then closed the interior door.

In their interviews, the three detectives provided consistent explanations of why they visited the incident address. Approximately three or four days prior to this incident, Detective Griffith observed a man riding down the driveway and into the backyard of the incident address. The detectives suspected that this man was § 87(2)(b), who was wanted for committing a past burglary within the 113th Precinct.

Prior to observing the bicycle rider, the detectives had no knowledge of the incident location. They did not know who lived there and had no reason to suspect that it was associated with any crime beyond the bicycle rider's presence. The next day, Detective Griffith used an unspecified database to determine that § 87(2)(b) lived at the incident address and had an outstanding bench warrant related to a suspended driver's license. Detective Griffith did not suspect that § 87(2)(b) s warrant was in any way connected to or associated with § 87(2)(b) alleged burglary, and Detective Griffith found no information connecting § 87(2)(b) to the incident address. The detectives returned to the incident address on the incident date intending to apprehend § 87(2)(b) based on his bench warrant and debrief him regarding § 87(2)(b) activities and whereabouts.

In his sworn statement, § 87(2)(b) stated that Detective Griffith said he was from the Warrant Squad and that he was there to serve a warrant for someone's arrest. Detective Griffith did not name the person that he was looking for, but said that § 87(2)(b) looked like the photograph on the warrant. § 87(2)(b) told Detective Griffith that the person he was looking for did not live at the incident address.

Detective Griffith told § 87(2)(b) that he could not hear him, and asked him to open the exterior door. § 87(2)(b) refused to open the door. Detective Griffith said that he would kick the door in, and § 87(2)(b) said, "No problem." He

then closed the interior door. § 87(2)(b) was consistent in his description of this allegation in his telephone statement.

In his interview, Detective Griffith stated that after he knocked on the exterior door, a black man opened the interior door. When asked by the investigation if he knew who it was that he spoke to at the front door, Detective Griffith initially stated that he believed it was § 87(2)(b). He then acknowledged that while he had a photo of § 87(2)(b) and the man at the door resembled that photo, the photo was an imperfect reference and he was not sure who he spoke to.

Detective Griffith told the man at the door, identified by the investigation as § 87(2)(b) that he had a warrant for § 87(2)(b) and that he wanted to bring § 87(2)(b) to the courthouse to clear it up. Detective Griffith told § 87(2)(b) that he had the authority to “take” the house door because he had a warrant, but he did not say that he would “kick in” the door. In response to Detective Griffith’s statements about the warrant, § 87(2)(b) immediately closed the interior door.

Detective Griffith estimated that he spoke to § 87(2)(b) for approximately two minutes, and during that time § 87(2)(b) made no statements. Detective Griffith did not notice anyone behind § 87(2)(b) inside of the house.

In his interview, Detective Pilkington stated that he was on the right side of the house for approximately 30 seconds before Detective Griffith notified him over the radio that he was speaking to someone at the front door. Detective Pilkington walked back to the front of the house and heard § 87(2)(b) tell Detective Griffith that he would not open the door. Detective Griffith told § 87(2)(b) that the officers had an active warrant for § 87(2)(b) that would permit them to enter the house. § 87(2)(b) said, “I know my rights. I don’t have to open the door.” He then closed the door.

In his interview, Detective McGee stated that while standing towards the west side of the house, he heard Detective Griffith speaking to a civilian at the front door. He could not describe what he heard Detective Griffith or the civilian say.

The investigation obtained a copy of the arrest warrant that the subject officers possessed for § 87(2)(b) during this incident (docket number § 87(2)(b), issued on § 87(2)(b)) (**Board Review 09**). The warrant contains a color photograph of § 87(2)(b) along with a listed address (the incident address) and physical descriptive information. When § 87(2)(b) provided his sworn statement, the investigation took a color photograph of him (**Board Review 10**).

When officers possess a valid arrest warrant for a suspect, they may enter that suspect’s residence if they have a reasonable basis for believing the suspect is inside (*Payton v. New York*, 445 U.S. 573 (1980)) (**Board Review 11**). When officers arrive at a suspect’s residence early in the morning, they should possess specific information leading them to believe the suspect is home and not rely exclusively on the early hour (*United States v. Luckey*, 701 F. Supp.2d 464 (2009)) (**Board Review 12**).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** and be **exonerated**.

Allegation E – Abuse of Authority: Officers damaged § 87(2)(b)'s property.

Police Officer Barahona was interviewed at the CCRB on March 1, 2019 (**Board Review 06**). Sergeant DeJesus was interviewed at the CCRB on March 11, 2019 (**Board Review 07**). Police Officer Rohme was interviewed at the CCRB on March 11, 2019 (**Board Review 08**). Police Officer McClain left the NYPD prior to being identified as involved in this incident, and was not interviewed.

In his sworn statement, § 87(2)(b) stated that after closing his front door he immediately heard banging or kicking on the front, side, and rear doors. Approximately five minutes after the officers left, § 87(2)(b) went outside and saw that his car was scratched. The scratch was single line approximately halfway up the height of the car's body that ran for approximately three inches on the driver's side of the trunk, along the entirety of the driver's side rear quarter panel, and along the entirety of the driver's side rear door. § 87(2)(b) described the scratch as looking like the result of someone dragging a tool, key, or knife along the rear of the car as they walked by.

§ 87(2)(b) did not see an officer scratch his car. One of § 87(2)(b)'s brothers reportedly saw Detective McGee scratch § 87(2)(b)'s car, but § 87(2)(b)

§ 87(2)(b) refused to specify or identify which brother witnessed this action. § 87(2)(b) was not sure when within the incident his brother saw Detective McGee scratch the car.

§ 87(2)(b) noticed that the screens on his house's windows had all been raised, and the doors were both damaged. The black metal security door on the front of the house had small "dings" or marks in its paint. The side and rear doors had more noticeable dents, and their frames were cracked.

In his interview, Detective Griffith stated that after § 87(2)(b) "slammed" the door shut, he knocked several more times to see if anyone would answer. However, nobody did. Detective Griffith used his fist to knock on the door, and never used a flashlight or other tool to strike it. Detective Griffith did not believe that his knocking on the door caused it any damage. Detective Griffith denied lifting any of the house's windows or window screens or seeing another officer do this.

In his interview, Detective McGee denied approaching or knocking on any of the incident address' doors or windows. He acknowledged approaching and standing near § 87(2)(b)'s vehicle (which was parked in the driveway), but denied touching it or damaging it in any way, either accidentally or on purpose.

In his interview, Detective Pilkington stated that he and Detective Griffith initially approached the front door together. They knocked on the door but received no answer. Detective Pilkington walked away from the front door and to the right side of the house. Detective Pilkington knocked on another door on the right side of the house but did not get any response. Detective Pilkington was on the right side of the house for approximately 30 seconds. He did not knock on any windows or additional doors, and never had any view into the house's interior. He did not raise or remove any window screens. He denied damaging the side door by knocking on it, or seeing another officer do so.

After § 87(2)(b) closed the front door, Detective Pilkington and Detective Griffith remained near it for approximately five minutes. The detectives knocked on the door and tried to get someone inside of the house to respond. The officers eventually gave up and began to walk away from the front door. Detective Pilkington denied damaging the front door or seeing another officer do so.

In his interview, Sergeant DeJesus stated that § 87(2)(b)'s car had "a little scratch" on the passenger side of the car.

In their interviews, Police Officer Barahona and Police Officer Rohme both denied have any recollection of § 87(2)(b)'s car's condition. In their interviews, Police Officer Barahona, Police Officer Rohme, and Sergeant DeJesus all stated that § 87(2)(b) accused plainclothes officers of scratching his car.

In telephone calls with § 87(2)(b) the investigation repeatedly requested that he provide photographs or videos of the property damage that allegedly occurred during this incident. However, the investigation has been unable to obtain any documentation of the property damage from § 87(2)(b) other civilians, or the NYPD. § 87(2)(g)

§ 87(2)(g)

. It is therefore recommended that **Allegation E** be closed as **officer(s) unidentified**.

Allegation F – Abuse of Authority: Detective Christopher Griffith threatened to arrest § 87(2)(b)

Allegation G – Abuse of Authority: Detective Christopher McGee took photographs or recordings of § 87(2)(b)

In his sworn statement, § 87(2)(b) stated that he went outside on to the second-floor balcony along with both of his brothers. All three police officers were now standing on the sidewalk directly in front of the gate leading to § 87(2)(b)'s property. Detective McGee apparently recorded § 87(2)(b) and his brothers with a cellphone. § 87(2)(b) saw Detective McGee's cellphone tucked into the collar or upper lapel of his coat, and he stood in such a position so that the cellphone's camera was pointed towards the civilians. Detective Griffith told § 87(2)(b) that he "was going to come back and get [him]" and that he would catch him if he hung out at unspecified bodega. The officers then left the area.

In his interview, Detective Griffith stated that after getting no response from the front door, the three detectives walked away from the house and out onto the public sidewalk. At that point, § 87(2)(b) and two other black men came out onto the house's second-floor balcony. The men on the balcony began speaking towards the detectives. Detective Griffith could not recall any specific statements, but said that the men were cursing a lot and trying to "bait" or "rile up" the detectives. The detectives did not respond, and Detective Griffith did not threaten to arrest § 87(2)(b).

In his interview, Detective McGee stated that the three detectives began to walk away from the house. A group of civilians came out on to the second-floor balcony of the house. The civilians began shouting and cursing at the detectives. Detective McGee could not recall what they said, but recalled that none of the civilians threatened the detectives. The civilians said that they were recording the detectives, and Detective McGee could see them pointing cellphones towards the detectives.

When asked whether he had taken any photographs or videos during the incident, Detective McGee said that he had taken out his cellphone intending to photograph the house. He wanted to have a photo of the house for "tactical reasons," in case the detectives ever returned and needed to know how best to "cover" the building. Later in the interview, Detective McGee explained that the incident address could conceivably have had four occupied floors: a basement or crawlspace, the two main floors, and an attic. Securing a residence of that size would require many officers and a specific plan.

§ 87(2)(g)

been party to two prior CCRB complaints.

- Page 9

- Complaint number 201607047 involved a substantiated allegation of premises entered and/or searched against Detective McGee. The Board recommended command discipline A and instructions and the NYPD imposed formalized training.
- Detective Pilkington has been a member of service for eight years and has been a subject in two other closed CCRB complaints and five other closed allegations, two of which were substantiated:
 - Complaint number 201607047 involved substantiated allegations of premises entered and/or searched and property damage against Detective Pilkington. The Board recommended command discipline A and the NYPD imposed formalized training.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming property damage and seeking approximately \$3,300 as redress (**Board Review 15**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Squad No.: 10

Investigator:	_____ Signature	_____ Print Title & Name	_____ Date
Squad Leader:	_____ Signature	_____ Print Title & Name	_____ Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date